Turkey's F-35 window closes with Trump

送信者: EG United States 受信日時: 2026-11-11 02:56

【メール原文】

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Turkey’s best chance for sanctions relief ends with Trump’s term

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President Donald Trump can lift sanctions on US arms sales to Turkey through executive authority, but such a move is unlikely and would not be sufficient to guarantee Turkey's acquisition of F-35 fighter jets.

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US law would require Ankara to undertake the tremendously costly removal of its Russian S-400 air defense systems before F-35 transfers could proceed, making sanctions relief an incomplete victory, though probably the best outcome Turkey can achieve in the coming years.

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Turkey will likely have no better chance at sanctions relief than during what remains of Trump’s term, as potential successors on both sides of the aisle, as well as interest groups in Washington, will pose greater resistance once he is out of office.

F-35s are critical to Turkey’s airpower and defense industrial ambitions. Ankara's exclusion from the program in 2019 deprived its air force of fifth-generation capabilities. Despite acquiring Eurofighter Typhoons and developing indigenous alternatives, including the KAAN fighter jet and Kizilelma unmanned combat aircraft, a significant capability gap remains.

Turkey also lost a lucrative role in the F-35 supply chain, which was set to incorporate more than 900 Turkish-made parts and generate over $9 billion for Turkish suppliers, particularly Turkish Aerospace Industries (TAI) and Kale Group. Beyond foregone revenues, these companies lost invaluable know-how and export opportunities. Regaining access to the F-35 program, as an operator and supplier, will likely remain a strategic priority for Ankara.

CAATSA sanctions do not foreclose broader US-Turkey defense trade. The sanctions imposed on Turkey in 2020 under the Countering America’s Adversaries Through Sanctions Act (CAATSA) apply specifically to the country’s defense procurement agency, the Presidency of Defense Industries (SSB). Transactions that bypass it can therefore proceed. GE is preparing to supply the engines for Turkey's KAAN fighter jet directly to its maker, TAI, while proposed sales of missiles and F-16 fighters will take place through the Foreign Military Sales (FMS) mechanism, with the Turkish government as the designated purchaser.

Trump has the authority to waive or terminate CAATSA sanctions. Any such decision would be subject to a 30- or 60-day congressional review period during which relief cannot take effect. In this period, Congress could block the move through a joint resolution of disapproval, though Trump could veto it, requiring a two-thirds majority in both chambers to override him — however, such a majority is unlikely to be reached.

Alternatively, Trump could invoke a separate national security waiver under Section 231(d) that is exempt from congressional review, provided he certifies that relief serves US national security interests and poses no significant risks to US defense capabilities. On balance, if Trump decides to waive CAATSA sanctions, Congress would have limited means to stop him.

Executive action is unlikely to suffice for F-35 reinstatement. Even with CAATSA relief, Section 1245 of the FY2020 National Defense Authorization Act (NDAA) separately prohibits F-35 transfers unless the secretaries of State and Defense jointly certify to Congress that Turkey “no longer possesses” Russian S-400 air defense systems and provide “credible assurances” against future defense purchases from Russia. Trump cannot deliver F-35s to Turkey unless these conditions are met.

Indeed, just two weeks after he publicly backed Turkey’s return to the F-35 program during the NATO Summit, the State Department notified Congress on 22 July that Ankara had yet to meet the legal requirements, leaving transfers prohibited under existing law. Alternatives such as placing the S-400s in storage fall short of legal requirements. The clearest path is to remove the S-400 system from the country altogether, though this requires both Moscow’s approval and a willing recipient—both of which would likely cost Ankara dearly and are therefore extremely unlikely.

Turkey’s best chance for relief ends with Trump’s term. Political obstacles will likely worsen with the Democrats in control of both chambers of Congress. A post-Trump administration, whether Democratic or Republican, will almost certainly revert to the bipartisan political position that conditions sanctions relief on resolving the S-400 dispute. Structural resistance to F-35 transfers spans lawmakers aligned with Israeli, Greek, Cypriot, and Armenian interests, as well as advocates of Kurdish autonomy, human rights, and a tougher stance toward Russia.

CAATSA relief would therefore represent a meaningful but incomplete victory for Ankara, though potentially the most it can secure before the political window closes. Future cooperation on advanced defense platforms remains possible, but it would require a US president as sympathetic to Ankara as Trump and a Turkish leader willing to reciprocate, whether President Recep Tayyip Erdogan or his successor.

Beyond the S-400 dispute, Israel is a key political obstacle. Preserving Israel's qualitative military edge is a statutory requirement for US arms sales to Middle Eastern countries. Though the provision does not currently apply to Turkey, calls to extend it are growing. Israel's influence could become further entrenched under the proposed FY2027 NDAA, which includes provisions to deepen integration of US and Israeli defense supply chains. Greater reliance on jointly developed technologies could complicate future transfers of advanced US weapons to regional rivals.

Prime Minister Benjamin Netanyahu has raised objections directly with Trump, while bipartisan resistance in Congress is already evident. Overcoming this opposition, likely to intensify amid growing Turkish-Israeli competition in Syria and the Eastern Mediterranean, would require considerable political capital. In this context, a solution to the F-35 issue after Trump leaves office becomes highly unlikely absent a fundamental improvement in relations between Turkey and Israel.

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